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STANLEY-MOSK SUPERIOR COURTHOUSE

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES JURISDICION

FOX NORMANDIE APARTMENTS, LP,

Plaintiff,

vs.

DERRICK L. BEVERLY,

Defendant,

DERRICK LAMONT BEVELRY

Respondant.

Case No.: **22STUD06657**

MOTION AND NOTICE OF MOTION TO SET ASIDE DEFAULT AND DEFAULT JUDGMENT; MEMORANDUM OF POINTS AND AUTHORITIES;DECLARATION OF DERRICK LAMONT BEVERLY;EXHIBIT INDEX; [PROPOSED] ORDER;AND NOTICE OF NOTICE; PROOF OF SERVICE (Code Civ. Proc. §§ 415.20, 415.46, 473(d), 473.5; Evid. Code § 647; and the Court's inherent authority to correct orders entered without reliable jurisdictional proof)

Hearing Date: April 22, 2026
Time: 8:30 a.m.
Department: 91
Judge: Hon. (Dept. 91 Judicial Officer)
Location: Stanley Mosk Courthouse
111 North Hill Street
Los Angeles, California 90012

PLEASE TAKE NOTICE that on April 22, 2026, at 8:30 a.m., or as soon thereafter as the matter may be heard, in Department 91 of the above-entitled Court, located at the Stanley Mosk Courthouse, 111 North Hill Street, Los Angeles, California 90012, Defendant Derrick LaMont Beverly will move for an order setting aside the default and any default judgment entered against him in this action.

Relief is sought at the earliest reasonable opportunity after Defendant obtained access to the service record and identified contradictions affecting identity, method, and statutory completion of service.

This motion is brought under Code of Civil Procedure sections 415.20, 415.46, 473(d), and 473.5, Evidence Code section 647, and the Court's inherent authority to correct orders entered without reliable jurisdictional proof. The motion rests on the narrow but consequential proposition that Plaintiff's sworn service papers do not reliably establish one coherent jurisdictional event. The filed proofs do not reliably identify one method of service, one recipient, one completed statutory sequence, and one effective service date. Defendant further contends that the service record did not result in actual notice to him in time to appear and defend before default consequences advanced.

Defendant confirmed with Department 91 that the Court does not provide an official court reporter for the scheduled hearing. Defendant therefore intends to arrange for a privately retained certified shorthand reporter and will provide advance notice to the department in order to preserve an accurate verbatim record of the proceedings.

This motion is based upon this Notice, the accompanying Memorandum of Points and Authorities, the Declaration of Derrick LaMont Beverly, the Exhibit Index, the attached exhibits, all pleadings and papers on file in this action, such matters as may be judicially noticed, and such further oral and documentary evidence as may be presented at hearing.

MEMORANDUM OF POINTS AND AUTHORITIES

I. INTRODUCTION

The proposition for the Court is narrow and judicially usable: the filed proofs do not reliably establish one method of service, one recipient, one completed statutory sequence, and one effective service date. If the Court cannot identify those elements from the sworn papers, then Plaintiff has not credibly established jurisdiction or actual notice before default. Code of Civil Procedure section 415.20 matters because substitute service requires reasonable diligence and a follow-up mailing, and service becomes complete only after the statutory mailing period runs. Code of Civil Procedure section 473.5 matters because relief is available where service did not result in actual notice in time to defend. Code of Civil Procedure section 473(d) matters because a judgment void for lack of proper service remains vulnerable to attack. Evidence Code section 647 matters because the process server's return is rebuttably presumptive, not conclusive.

This motion proceeds in two internal lanes, not one blended soup. Lane A is the jurisdiction and voidness lane: the proofs are internally inconsistent and do not credibly establish valid service. Lane B is the actual-notice lane: even if Plaintiff argues technical compliance, Defendant lacked actual notice in time to defend before default consequences occurred. That dual structure gives the Court an off-ramp if it hesitates to declare service outright void but finds the record insufficiently reliable to deny relief.

The exhibit theory is visual and chronological. The original and amended proofs of service, the demographic mismatch, the method collision, the mailing chronology, the notice-of-failure-to-file-proof-of-service record, the reassignment and mailing notices, the sheriff lockout timeline, and the later efforts by Defendant to access the court record all show that Plaintiff's jurisdictional record is not reliable enough to support a default path. Put simply, the sworn papers sound less like one completed statutory service event and more like a confused pile of overlapping theories. That may suffice for administrative motion, but it is not enough for due process.

II. FACTUAL AND PROCEDURAL BACKGROUND

This unlawful-detainer action was filed on or about October 13, 2022 in the Superior Court of California, County of Los Angeles, Stanley Mosk Courthouse, under case number 22STUD06657. The available court materials show that on October 17, 2022 the matter was assigned as an individual calendar case to Department 91 and assigned to Judge Cheryl J. Nelson. The file also reflects a Notice of Hearing Re Failure to File Proof of Service, ordered October 16, 2017 and setting a hearing date of December 22, 2022. On its face, that hearing notice contains an anomalous order date that predates the 2022 complaint by years, a further sign that the jurisdictional record was not proceeding with ordinary clarity.

The service record then fractured. One filed Proof of Service of Summons states personal service upon 'Derrick L. Beverly, an individual' at 849 South Normandie Avenue, Unit 101, Los Angeles, California 90005 on October 27, 2022 at 5:02 p.m. Another filed version and the amended version invoke substitute service, occupant language, and Code of Civil Procedure section 415.46 concepts. The amended papers describe documents left with an occupant identified as 'John/Jane Doe' and further describe the recipient as a Hispanic or Latino male approximately 30 years old. Defendant affirmatively states that description does not match him.

Defendant's legal name is Derrick LaMont Beverly. He is not 'Derrick L. Beverly' as a formal legal identity, is not a John or Jane Doe occupant, and does not match the demographic description used in the filed papers.

The papers also do not present one clean sequence of statutory completion. One part of the proof reads like substitute service, with a leave-behind event and a later mailing. Another part states that service was made in accordance with section 415.46, including posting and additional mailing, yet the dates and descriptions do not cleanly align into one statutory sequence. The proof materials therefore do not reliably tell the Court whether Plaintiff claims personal delivery, substitute service, occupant service, or post-and-mail occupant procedure as the operative method.

Defendant declares that he was never personally handed the summons and complaint, never received the summons and complaint by mail in time to defend before default, and did not obtain actual notice of the case in time to respond before default machinery advanced. Defendant's first actual awareness of enforcement was approximately January 4, 2023, when a sheriff-related notice to vacate was observed. The lockout was carried out on January 26, 2023. Defendant further states that he attempted in good faith to assert his rights, including through claim-of-right or occupant-related objection efforts, but those efforts were refused or ignored as enforcement proceeded.

The later history of the case confirms that Defendant did not abandon his rights once he learned enough of the service defect cluster to act responsibly. The court-access history and subsequent filings reflect repeated efforts to obtain copies, review the case history, and prepare relief papers. The later docket activity also shows that the same address remained in use for service-related transmissions post-judgment, which underscores the fairness problem: if Plaintiff and the Court continued using that address later, then Plaintiff cannot credibly trivialize the earlier mailing and notice defects as though actual notice somehow took care of itself.

III. LEGAL STANDARDS

A court may not exercise personal jurisdiction over a defendant without valid service of process or a legally sufficient substitute that satisfies due process. Personal service under Code of Civil Procedure section 415.10 is complete at the time of hand delivery. Substitute service under section 415.20 requires more than a vague assertion that papers were left somewhere with someone. It requires reasonable diligence before substitute service is used, delivery to an appropriate person, follow-up mailing, and legal completion only after the statutory mailing period runs. That completion date matters because default timing can collapse if service had not yet become effective when default was sought.

Code of Civil Procedure section 473(d) authorizes the Court to set aside a void judgment or order. A default entered without valid service is vulnerable because personal jurisdiction was never reliably established. Code of Civil Procedure section 473.5 provides a separate and independent lane of relief where service did not result in actual notice in time to defend. Those are related but distinct theories. A defendant need not lose one because the Court hesitates on the other.

Evidence Code section 647 makes the return of a registered process server prima facie evidence of the facts stated in the return. But prima facie is not conclusive. The presumption dissolves when the record contains internal contradictions, material inaccuracies, demographic mismatch, or statutory-sequence ambiguity sufficient to undermine reliability. In an unlawful-detainer context, section 415.46 also matters because occupant-style service does not magically replace the need to coherently establish service on a named defendant. Nor may a plaintiff use occupant logic to ease service, then deny occupant-related protections when the defendant attempts in good faith to invoke them during enforcement.

IV. ARGUMENT

A. *Plaintiff's sworn papers do not establish one coherent jurisdictional event.*

The Court should ask four questions and only four. What single method was used? Who was served? What completed statutory sequence occurred? On what date did service become legally effective? The filed proofs do not answer those questions in one voice. They answer them in several contradictory voices at once.

The original proof reads as though personal service occurred. But hand delivery to Defendant never happened, according to Defendant's declaration, and the same paperwork later shifts to substitute-service and occupant-service themes. The amended proof compounds rather than cures the problem. It describes an occupant, John or Jane Doe, and a Hispanic or Latino male approximately 30 years old. Defendant states he is Derrick LaMont Beverly, not Derrick L. Beverly as a formal legal name, not a John or Jane Doe occupant, and not the person described by the server. This is not merely a middle-initial shorthand issue. It is an identity defect embedded inside a larger pattern of unreliability.

B. *The service papers contain a method collision that undercuts reliability.*

One portion of the record sounds like substitute service under section 415.20: documents left with a person at the residence plus follow-up mailing. Another portion sounds like section 415.46 occupant-posting procedure: occupant language, posting, and additional mailing. These are not trivial variations. They are mutually distinct statutory routes with different predicates, different factual showings, and different completion rules.

Because Plaintiff's own sworn papers shift among these routes without cleanly identifying one controlling service theory, the record is not reliable evidence that any particular route was correctly completed. A proof of service is supposed to clarify the jurisdictional event. Here it blurs the event until the Court is left guessing. Due process does not rest on guesswork.

C. *The mailing and completion date remain materially ambiguous.*

Under section 415.20, substitute service is deemed complete on the tenth day after mailing. That means the Court must be able to identify the mailing date and calculate the legal completion date before evaluating the timing of default. Here, the record does not cleanly identify a single completion date because the papers mix theories and timelines. If Plaintiff cannot show one clear mailing event tied to one valid substitute-service sequence, then Plaintiff cannot cleanly show when service became effective. If service effectiveness is uncertain, default timing is compromised.

D. *The process server's presumption has been rebutted.*

Evidence Code section 647 gives a registered process server's return presumptive force only until rebutted. The rebuttal here comes from Plaintiff's own file: incompatible service theories, a nonmatching demographic description, uncertain statutory completion, and an anomalous overall record that includes conflicting or confusing court-generated service-related notices. The presumption therefore does not rescue the proof. It merely starts the analysis. The contradictions finish it.

E. *Relief is warranted under both the jurisdiction lane and the actual-notice lane.*

Under the jurisdiction lane, the default and default judgment should be set aside under section 473(d) because Plaintiff has not credibly established valid service. Under the actual-notice lane, relief is warranted under section 473.5 because Defendant states he did not receive actual notice in time to defend before default consequences advanced. The Court need not choose between fairness and doctrine. The statutes already provide both paths.

F. *The Court should require production of the underlying service file.*

If Plaintiff insists that service was proper, Plaintiff should be required to produce the underlying service file that supposedly supports that position: attempt logs, field notes, declarations of diligence, photographs of posting, GPS or app-based timestamps, mailing records, and the exact basis for the demographic description placed into the filed proof. If those materials do not exist, the absence itself strengthens the reliability attack. If they do exist and contradict the filed proofs, the contradiction strengthens it even more. Either way, the record should be tested rather than assumed.

V. DEFENDANT'S DILIGENCE

Defendant did not sit on known rights. He lacked actual notice before default. He later undertook specific steps to obtain the file, review the proofs of service, compare the original and amended versions, identify the contradictions affecting identity, method, and statutory completion, and prepare relief papers responsibly. Relief is sought at the earliest reasonable opportunity after Defendant obtained access to the service record and identified contradictions affecting identity, method, and statutory completion of service.

On March 23, 2026, Defendant contacted Department 91 of the Stanley Mosk Courthouse by telephone and spoke with department staff to request a hearing date for Defendant's Motion to Set Aside Default and Default Judgment; Memorandum of Points and Authorities; Declaration; Exhibit Index; and Proposed Order, brought under Code of Civil Procedure sections 415.20, 415.46, 473(d), 473.5, Evidence Code section 647, and the Court's inherent authority to correct orders entered without reliable jurisdictional proof in this action. Department staff confirmed that the motion was placed on calendar for April 22, 2026 at 8:30 a.m. in Department 91. During the same communication, department staff further confirmed that Department 91 does not provide an official court reporter and advised that Defendant may arrange for a privately retained certified shorthand reporter with advance notice to the department. Defendant documented the date, time, and substance of this communication in order to ensure accurate calendaring and preservation of the appellate record.

That is not delay. That is diligence. The timing record shows that Defendant acted in a measured, responsible manner to secure the file, understand the service defect cluster, confirm the hearing date, and preserve the appellate record rather than rush in with a half-assembled motion.

VI. PRAYER FOR RELIEF

For the foregoing reasons, Defendant respectfully requests that the Court: (1) set aside the default and any default judgment entered against him in this action; (2) grant relief under Code of Civil Procedure section 473(d) to the extent the Court finds the service record insufficient to credibly establish valid service and personal jurisdiction; (3) grant relief under Code of Civil Procedure section 473.5 to the extent the Court finds Defendant lacked actual notice in time to appear and defend before default consequences occurred; (4) alternatively vacate the default pursuant to the Court's inherent authority to correct orders entered without reliable jurisdictional proof; (5) require Plaintiff to produce the underlying service-file materials supporting any claim of reasonable diligence and statutory compliance, including attempt logs, field notes, declarations of diligence, mailing records, photographs, and any app, GPS, or other contemporaneous records; (6) stay any further enforcement flowing from the challenged default and default judgment pending adjudication of this motion; and (7) grant such other and further relief as the Court deems just and proper.

DECLARATION OF DERRICK LAMONT BEVERLY

I, Derrick LaMont Beverly, declare as follows:

1. I am the Defendant in this action. I have personal knowledge of the matters stated herein and, if called as a witness, could and would testify competently thereto.

2. My legal name is Derrick LaMont Beverly. I do not use 'Derrick L. Beverly' as my formal legal name. The use of an assumed initial, standing alone, does not identify me with the certainty required for reliable jurisdictional proof, and in this case the variance appears alongside deeper contradictions concerning method, recipient, and demographic description.

3. I was never personally handed the summons and complaint in this action. I was not served by personal delivery as contemplated by Code of Civil Procedure section 415.10.

4. I did not receive the summons and complaint by mail in time to appear and defend before default consequences advanced.

5. The description used in the amended proof of service, including reference to an occupant described as a Hispanic or Latino male approximately 30 years old, does not match me. I am an African American male and I did not match that description at the relevant time.

6. The filed service papers appear to alternate among named-defendant service, occupant-style service, and substitute or posting-and-mail language without coherently identifying one controlling service method.

7. I first obtained actual awareness of enforcement only after default machinery had already advanced, including approximately January 4, 2023 when a sheriff-related notice to vacate was observed, and January 26, 2023 when the lockout occurred.

8. I attempted in good faith to protect my rights and be heard prior to and during enforcement. I also later undertook efforts to obtain copies of the court record, review the proofs of service, identify contradictions, and prepare relief papers responsibly.

9. On March 23, 2026, Defendant contacted Department 91 of the Stanley Mosk Courthouse by telephone and spoke with department staff to request a hearing date for Defendant's Motion to Set Aside Default and Default Judgment; Memorandum of Points and Authorities; Declaration; Exhibit Index; and Proposed Order, brought under Code of Civil Procedure sections 415.20, 415.46, 473(d), 473.5, Evidence Code section 647, and the Court's inherent authority to correct orders entered without reliable jurisdictional proof in this action. Department staff confirmed that the motion was placed on calendar for April 22, 2026 at 8:30 a.m. in Department 91. During the same communication, department staff further confirmed that Department 91 does not provide an official court reporter and advised that Defendant may arrange for a privately retained certified shorthand reporter with advance notice to the department. Defendant documented the date, time, and substance of this communication in order to ensure accurate calendaring and preservation of the appellate record.

10. Defendant confirmed with Department 91 that the Court does not provide an official court reporter for the scheduled hearing. Defendant therefore intends to arrange for a privately retained certified shorthand reporter and will provide advance notice to the department in order to preserve an accurate verbatim record of the proceedings.

11. I did not sit on known rights. Any delay in bringing this motion was tied to obtaining records, understanding the service history, accessing the court file, comparing the original and amended proofs, documenting the contradictions, and assembling evidence necessary to present the issue responsibly.

12. Attached exhibits include true and correct copies of the original proof of service, amended proof of service, related mailing or court-generated notices, service-defect matrix materials, timeline materials, and such further documents as are identified in the exhibit index accompanying this motion.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on March 24th, 2026, at Los Angeles, California.

_____
DERRICK LAMONT BEVERLY

EXHIBIT INDEX

Exhibit	Description	Purpose
A	Original Proof of Service of Summons	Shows first sworn service theory and identity/method statements.
B	Amended Proof of Service of Summons	Shows changed recipient description, occupant crossover, and method conflict.
C	Proof of Service by First-Class Mail / mailing-related papers	Shows mailing chronology and completion issues.
D	Notice of Rejection / Failure to File Proof of Service / related court notices	Shows procedural irregularity and file-management anomalies.
E	Notice to Vacate / sheriff lockout chronology	Shows first actual notice and enforcement timeline.
F	Court-access anomaly materials	Authenticates access difficulties while reviewing the record.
G	Judge-Facing Service-Defect Matrix	Compresses identity defect, method conflict, mailing gap, occupant crossover, and effective-date ambiguity.

[PROPOSED] ORDER

Defendant Derrick LaMont Beverly's Motion to Set Aside Default and Default Judgment came on regularly for hearing on April 22, 2026, at 8:30 a.m. in Department 91 of the above-entitled Court. Having considered the moving papers, any opposition, any reply, the records on file, judicially noticed matters, and oral argument, the Court orders as follows:

1. Defendant's motion is **GRANTED.**

2. The default and any default judgment entered against Defendant in this action are **VACATED.**

3. The Court finds that Plaintiff's sworn proof-of-service materials do not reliably establish one coherent jurisdictional event sufficient to support the challenged default and default judgment.

4. The Court further finds that Defendant did not receive actual notice in time to appear and defend before default consequences advanced.

5. Defendant shall have _____ days from notice of this order to file a responsive pleading or other authorized response.

6. Plaintiff shall, within _____ days, produce the underlying service-file materials supporting the challenged proofs of service, including attempt logs, field notes, declarations of diligence, mailing records, photographs, and any app, GPS, or other contemporaneous records.

7. Any enforcement based upon the challenged default and default judgment is stayed pending further order of the Court.

IT IS SO ORDERED.

Dated: April 22nd, 2026

_____

JUDGE OF THE SUPERIOR COURT

NOTICE OF NOTICE

(Declaration Regarding Notice of Motion Scheduling / Department Communication)

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES

FOX NORMANDIE APARTMENTS, LP,

Plaintiff,

v.

DERRICK LAMONT BEVERLY,

Defendant.

Case No.: 22STUD06657

DEFENDANT'S NOTICE OF NOTICE REGARDING HEARING

RESERVATION COMMUNICATION WITH DEPARTMENT 91

I, **Derrick LaMont Beverly**, declare as follows:

1. I am the Defendant in this action and appear **in propria persona**.
2. On **March 23, 2026**, Defendant contacted **Department 91 of the Stanley Mosk Courthouse** by telephone to request placement of Defendant's Motion to Set Aside Default and Default Judgment; Memorandum of Points and Authorities; Declaration; Exhibit Index; and Proposed Order on calendar.
3. During that communication, department staff confirmed that the motion was placed on calendar for hearing on **April 22, 2026 at 8:30 a.m. in Department 91**.
4. During the same communication, department staff further confirmed that **Department 91 does not provide an official court reporter** for the scheduled hearing.
5. Defendant thereafter confirmed that Defendant may arrange for a **privately retained certified shorthand reporter** and provide advance notice to the department to preserve a verbatim record of the proceedings.
6. Defendant documented the date, time, and substance of this communication in order to ensure accurate calendaring and preservation of the appellate record.
7. Following the initial reservation communication, Defendant conducted a **follow-up verification call** with Department 91 staff confirming that the reservation entry had been recorded in the department calendaring system.
8. Department staff confirmed that a reservation entry existed for the case reflecting the scheduled hearing date.

9. These communications are documented and submitted as **Exhibit F — Department 91 Reservation Confirmation Record (March 23, 2026).**
10. Relief is sought at the earliest reasonable opportunity after Defendant obtained access to the service record and identified contradictions affecting identity, method, and statutory completion of service.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed this 24th day of March, 2026

Los Angeles, California

_____

Derrick LaMont Beverly

Respondent in Propria Persona Sui Juris

PROOF OF SERVICE

(California CCP §§ 1013a, 2015.5 compliant format)

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES

FOX NORMANDIE APARTMENTS, LP,

Plaintiff,

v.

DERRICK LAMONT BEVERLY,

Defendant.

Case No.: 22STUD06657

PROOF OF SERVICE

I am a resident of the State of California, over the age of eighteen years, and not a party to this action. My address is:

1929 Wilcox Avenue, Apt. #1

Hollywood, Los Angeles, California 90068

On March 24th, 2026, I served the following document(s):

DEFENDANT DERRICK LAMONT BEVERLY'S NOTICE OF MOTION AND MOTION TO SET ASIDE DEFAULT AND DEFAULT JUDGMENT; MEMORANDUM OF POINTS AND AUTHORITIES; DECLARATION; EXHIBIT INDEX; PROPOSED ORDER; NOTICE OF NOTICE; AND SUPPORTING EXHIBITS

on the interested parties in this action as follows:

BY ELECTRONIC SERVICE

☐ Based on agreement of the parties

☐ Pursuant to court order

☐ Via One Legal / approved EFSP transmission

Transmission was reported as complete without error.

Executed on March 24th, 2026

Los Angeles, California

_____

Derrick LaMont Beverly

In Propria Persona Sui Juris